

establishes limited disclosure—not formal discovery that is overbroad and not required. It contends sanctions are not warranted.

In reply, Plaintiffs submitted a notice of non-opposition.

The Court continues this motion to allow the Plaintiff's to file a reply brief as it appears that they were unaware of the opposition.

4.

CASE #	CASE NAME	HEARING NAME
CVME2515406	RINI VS FCA US LLC	MOTION FOR SANCTIONS

Tentative Ruling: Sanction awarded to defendant in the amount of \$1,500.

Defendant FCA also moves for mandatory sanctions under section 871.26 due to Plaintiffs' failure to timely serve disclosures and provide complete information. The declaration of counsel indicates that Plaintiffs have not served any initial disclosures.

In opposition, Plaintiffs argue the motion is moot as the initial disclosures have been served. They assert sanctions are not warranted because the attorney previously assigned to the case left, and caused an inadvertent calendaring gap.

In reply, Defendant argues that the delayed disclosures do not moot the issue of sanctions.

Code of Civil Procedure section 871.26 applies to civil actions seeking restitution or replacement of a motor vehicle. (Code Civ. Proc. § 871.26(a).) Within 60 days of filing an answer or responsive pleading, the parties shall provide initial disclosures. (*Id.* at § 871.26(b), (f), (g), (h).) Here, Defendant filed a demurrer on 8/7/25; thus, disclosures were due 10/6/25. The motion is not moot due the fact that sanctions are still at issue. Section 871.26(j)(1) imposes a \$1,500 sanction against a plaintiff's attorney who failed to comply with the initial disclosures unless good cause is shown. Here, good cause is not shown as it appears to be a calendaring error compounded by the handling attorney's departure. A calendaring error is not good cause regardless of whether it was a current or former attorney.

5.

CASE #	CASE NAME	HEARING NAME
CVME2610835	MARTINEZ VS VSI, INC.	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: Motion is Granted. Jury Trial to be set within 120 days. Hearing Required.